

GUIDELINES COMPLIANCE TABLE

ESMA Guidelines on the conditions and criteria for the qualification of crypto-assets as financial instruments (ESMA75453128700-1323)

The following competent authorities comply or intend to comply with ESMA Guidelines on the conditions and criteria for the qualification of crypto-assets as financial instruments (ESMA75453128700-1323):

		Competent authority	Complies or intends to comply*	Comments
Member States				
AT	Austria	Financial Market Authority (FMA)	Yes	ESMA-Leitlinien und andere Konvergenzinstrumente ESMA Guidelines and other Convergence Instruments
BE	Belgium	Financial Services and Markets Authority (FSMA)	Yes	
BG	Bulgaria	Financial Supervision Commission (FSC)	Yes	The Guidelines on the conditions and criteria for the qualification of crypto-assets as financial instruments are implemented into the Bulgarian national legislation through the Markets in Crypto-Assets Regulation.
HR	Croatia	Hrvatska agencija za nadzor financijskih usluga (HANFA)	Yes	HANFA - Obavijest subjektima nadzora o primjeni Smjernica o uvjetima i kriterijima za kvalifikaciju kriptoimovine kao financijskih instrumenata (ESMA75453128700-1323)
CY	Cyprus	Cyprus Securities and Exchange Commission (CySEC)	Yes	https://www.cysec.gov.cy/CMSPages/GetFile.aspx?guid=bf4088ef-9cc4-46ac-b331-529a56cae69e
CZ	Czech Republic	Czech National Bank (CNB)		The Czech National Bank intends to comply with the Guidelines once the legal definition of securities

Competent authority			Complies or intends to comply*	Comments
			Not applicable	under Czech law has been amended (alternatively, a corresponding change in judicial interpretation), particularly with regard to the assessment and classification of tokenised securities and tokenised units of collective investment undertakings governed by domestic law, which are not registered as book-entry securities in the relevant register pursuant to the Capital Market Undertakings Act, as referred to in paragraphs 11 to 32 and 37 to 43 of the Guidelines. At present, the application of the Guidelines in this scope is prevented by legislative barriers, specifically the formal concept of securities as defined in Sections 514 et seq. of the Civil Code. At this stage, the reference to a potential amendment to the legal definition of securities under Czech law remains a matter of expert discussion, with no formal legislative proposal or defined timeline. There are no legislative barriers to the application of the remaining parts of the Guidelines, and the Czech National Bank complies with those parts.
DK	Denmark	Finanstilsynet	Yes	The Danish Financial Supervisory Authority (FSA) already applies the ESMA guidelines. These guidelines require that national competent authorities across the EU/EEA adopt a harmonised legal assessment framework when classifying crypto-assets. The Danish FSA will consider foreign classifications as a relevant input but will always perform its own independent legal assessment based on EU law, including MiFID II, MiCA, and the relevant ESMA guidelines.
EE	Estonia	Finantsinspektion	Yes	The decision and guidelines texts in English and Estonian can be found https://www.fi.ee/et/juhendid/investeerimine/esma-suunised-suunised-tingimuste-ja-kriteeriumide-kohta-mille-kohaselt-krupovara-kvalifitseerub.
ES	Spain	Comisión Nacional del Mercado de Valores (CNMV)	Yes	The Guidelines are taken into consideration by the CNMV supervisory procedure P04 – Procedure for registration of issues, public offers for sale and listings, incorporation of securitization funds and banking asset funds, and registration of book-entry securities: (https://www.cnmv.es/DocPortal/Quees/Procedimientos/P04-Emissiones-admisiones-OPV_en.pdf).

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				https://www.cnmv.es/Portal/gpage?id=LegESMA&lang=en
FI	Finland	Finanssivalvonta (FSA)	Yes	https://www.finanssivalvonta.fi/en/publications-and-press-releases/supervision-releases/2025/the-european-supervisory-authorities-have-issued-a-number-of-guidelines-regarding-crypto-assets
FR	France	Autorité des Marchés Financiers (AMF)	Yes	https://www.amf-france.org/fr/actualites-publications/actualites/crypto-actifs-lamf-applique-six-ensembles-dorientations-elaborees-par-les-autorites-europeennes-de
DE	Germany	BaFin	Yes	https://www.bafin.de/EN/Aufsicht/MiCAR/MiCAR_node_en.html
EL	Greece	Hellenic Capital Market Commission (HCMC)	Yes	http://www.hcmc.gr/vdrv/elib/a1a460037-149a-43f0-ae3b-62801975bc6b-92668751-0
		Bank of Greece	Yes	The Bank of Greece has adopted Executive Committee Act 256/2/16.06.2026, which implements these Guidelines. The Act is available in Greek at the following link ΠΕΕ 256.02.pdf .
HU	Hungary	Magyar Nemzeti Bank (MNB)	Yes	The Guidelines have been implemented in the form of an 'MNB Guidance on the conditions and criteria for the qualification of crypto-assets as financial instruments. The MNB Guidance is available in Hungarian on the MNB's website at the following link: https://www.mnb.hu/letoltes/tajekoztato-kripto-eszkozok-penzugyi-eszkoznek-valo-minositese-felteteleirol-es-kriteriumairol.pdf
IE	Ireland	Central Bank of Ireland	Yes	The requirements of the Guidelines will be incorporated into the Central Bank of Ireland supervisory processes and practices.
IT	Italy	Commissione Nazionale per le Società e la Borsa (CONSOB)	Yes	https://www.consob.it/web/area-pubblica/-/avviso-consob-del-3-giugno-2025
		Banca d'Italia		
LV	Latvia	Latvijas Banka	Intends to comply*	Latvijas Banka intends to comply with the Guidelines by such time as the necessary legislative or regulatory proceedings have been completed.

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LT	Lithuania	Bank of Lithuania	Yes	https://www.lb.lt/uploads/documents/docs/53114_120b910353e6fe6c03d28ffc020a7d72.pdf
LU	Luxemburg	Commission de Surveillance du Secteur Financier (CSSF)	Yes	The CSSF complies with the guidelines through circular Circular CSSF 25/886 published on the CSSF website: Circulaire CSSF 25/886 (uniquement en anglais) – CSSF
MT	Malta	Malta Financial Services Authority (MFSA)	Yes	Crypto-Assets - MFSA
NL	Netherlands	Autoriteit Financiële Markten (Authority for the Financial Markets)	Yes	
PL	Poland			Non-compliance by default, pending designation by the Member State of the Competent Authority for the jurisdiction.
PT	Portugal	Mercado de Valores Mobiliários (CMVM)	Yes	CMVM
RO	Romania			Non-compliance by default, pending designation by the Member State of the Competent Authority for the jurisdiction.
SK	Slovakia	National Bank of Slovakia (NBS)	Not applicable	According to Guidelines 2 of these Guidelines national competent authorities and financial market participants should classify crypto-assets as transferable securities if they confer to their holders equivalent rights to those granted by shares, bonds, other forms of non-equity securities or other transferable securities as referred to in Article 4(1)(44) of MiFID II. Since the Slovak securities legislation does not enable the issuance of tokenised transferable securities (transferable securities issued by means of distributed ledger technology), national competent authorities and financial market participants cannot classify any crypto assets issued under Slovak securities legislation as transferable securities. Legislative change, which will address this issue, is envisaged, however there is no legislative proposal or defined timeline for the time being. The National Bank of Slovakia intends to

		Competent authority	Complies or intends to comply*	Comments
				comply with these Guidelines once this legislative change takes effect. https://nbs.sk/dohlad-nad-financnym-trhom/legislativa/legislativa/detail-dokumentu/usmernenia-esma-19-marca-2025-c-esma75453128700-1323-o-podmienkach-a-kriteriach-klasifikacie-kryptoaktiv-ako-financnych-nastrojov/ https://nbs.sk/en/dohlad-nad-financnym-trhom/legislativa/legislativa/detail-dokumentu/esma-guidelines-of-19-march-2025-no-esma75453128700-1323-guidelines-on-the-conditions-and-criteria-for-the-qualification-of-crypto-assets-as-financial-instruments/
SI	Slovenia	Securities Market Agency (SMA)	Yes	Securities Market Agency adopted a Decision on the application of Guidelines on the conditions and criteria for the qualification of crypto-assets as financial instruments, which was published in the Official Gazette No. 37/2025 on May 23, 2025 and which will come into force on June 7, 2025 (Link https://www.uradni-list.si/_pdf/2025/Ur/u2025037.pdf, page 186/274).
SE	Sweden	Finansinspektionen (FI)	Yes	FI tillämpar riktlinjer om kryptotillgångar Finansinspektionen
EEA EFTA States **				
IS	Iceland	Central Bank of Iceland	Intends to comply*	MiCA has not yet been implemented into the Icelandic legal order. A legislative bill to implement MiCA is expected to be submitted to the Parliament in fall 2025 and enter into force 1 of January 2026.
LI	Liechtenstein	Finanzmarktaufsicht (FMA)	Yes	https://www.fma.li.li/de/regulierung/regulierungen-der-europaischen-aufsichtsbehorden/guidelines.html
NO	Norway	Finanstilsynet	Yes	https://www.finanstilsynet.no/nyhetsarkiv/nyheter/2025/retningslinjer-fra-esma-om-kryptoeiendeler-mica/

* Please note that, in the interest of transparency, if a competent authority continues to intend to comply after the application date, it will be considered “non-compliant” unless (A) the guidelines or recommendations relate to a type of institution or instruments which do not

currently exist in the jurisdiction concerned; or (B) legislative or regulatory proceedings have been initiated to bring any national measures necessary to comply with the guidelines or recommendations in force in the jurisdiction concerned.

****** The competent authorities of the EEA States other than the Member States of the European Union are required to notify their compliance with ESMA's guidelines or recommendations relating to a legal act that has been incorporated in the EEA Agreement. This compliance table reports on guidelines relating to Regulation EU 2023/1114 which has been incorporated in the EEA Agreement Notes.

Article 16(3) of Regulation (EU) No 1095/2010 (the ESMA Regulation) requires national competent authorities to inform us whether they comply or intend to comply with each set of guidelines or recommendations we issue. If a competent authority does not comply or does not intend to comply it must inform us of the reasons. We decide on a case by case basis whether to publish reasons.

ESMA endeavours to ensure the accuracy of this document, however, the information is provided by the competent authorities and, as such, ESMA cannot accept responsibility for its content or any reliance placed on it.

For further information on the current position of any competent authority, please contact that competent authority. Contact details can be obtained from our website (www.esma.europa.eu).